

chargesheet can be taken unless it is backed by a prosecution sanction.

The issue of concern, however, is why there have been so few convictions. The problem lies in what the Government thought was the solution to it. A group of lawyers who spoke to INDIA TODAY confides that the Special Vigilance Court that the Government had constituted amid hype in 2008 for speedy trials of such trap cases has not been able to make much progress.

Though the court is 'special', it is not exclusive for trap cases. "It also has to hear session cases, including civil ones. All this leaves the special court with very little time for trap cases. And the Government is well aware of this," says a vigilance lawyer. It leaves the court with a backlog, which invariably slows down the process and these delays become the

RS 20 LAKH AND GOLD JEWELLERY SEIZED FROM THE HOUSE OF INSPECTOR OM PRAKASH



excuse the accused give while seeking bail. According to lawyers, it is easier to secure conviction when government officials are caught accepting bribe, which is usually an open-and-shut case. The irony is that such inadequacies can be easily corrected, with some time and thought. Here, the state needs to approach the High Court with a plea to create a court exclusively for these cases. But, this is not the only area where the implementation of anti-corruption measures has proved to be contradictory to the rhetorical articulation of the government's position.

The way the over-hyped Special Vigilance Unit (SVU) has been gradually made to lose teeth is a case in point too. The SVU was constituted in August 2006 as an elite investigating agency with an assignment to catch the crooks among the high and mighty on government rolls. With former officers from the Central Bureau of Investigation (CBI) on its rolls, the SVU that was independent of the State Vigilance Bureau (SVB) was expected to incisively investigate and make arrests. It did follow the script during the initial months. In 2007, the SVU

swooped down on three biggies. It carried out raids against DGP-rank officer, Narayan Mishra, senior IAS officer S.S. Verma and state Drug Controller Y.K. Jaiswal. The raids and massive skeletons that tumbled out of the costly closets shocked the state. From Verma's, whose establishments were raided in July 2007, the sleuths recovered 9 kg gold, Rs 16.5 lakh and \$500 in cash, jewellery worth Rs 15 lakh and land property at four places, apart from investment papers. Verma's name also allegedly figures in a land scam in Jharkhand where he was posted as deputy commissioner and then commissioner of Ranchi.

Ironically, almost three years after the SVU registered a disproportionate assets (DA) case against Verma, the agency is still investigating and yet to file a chargesheet. Though Verma is under suspension, in legal terms he seems to be off the hook. And he is not the only one who stands benefited by the SVU's cryptic reluctance in nailing the corrupt with questionable assets. Having registered only five FIRs in almost four years of its existence, the SVU seems to be a failed experiment. Of these five cases, the agency has



With a new law under the belt, Nitish Kumar has declared his Government's intent to confiscate properties of the corrupt and use them to open schools.

Mission Aborted

- Almost 400 officials were arrested in trap cases in four years, but convictions secured against only two.
- The SVU, constituted to catch the high and mighty, seems to be in the sleep mode—five FIRs, just one chargesheet and zero conviction in four years.
- DA cases against IAS and IPS officers have been left unattended in the SVU.
- No SVU FIRs since April 2008.

been able to file chargesheet in just one case, SVU Inspector General A.K. Upadhyay conceded. The only chargesheet has been filed against state Drug Controller Yogendra Kumar against whom a DA case was lodged in October 2007. Incidentally, Yogendra perhaps mans the bottom space in the pecking order of the persons raided by the SVU. The rest of the biggies whose establishments were raided—Verma, Mishra, Rajbhasha Director D.N. Choudhary and Chief Engineer Awadhesh Prasad Singh—are yet to be chargesheeted. Worse still, the agency conducted its last raid in April 2008 and since then it seems